

KMVTECH EDUCATION**INL1 · Module 1****Nature and sources**

Lesson: What is international law?

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

International law is the body of rules that primarily governs relations between States and other international actors. It rests on consent, practice and the need for order among sovereign equals.

Classic sources under Article 38(1) of the Statute of the International Court of Justice: (a) international conventions, (b) international custom as evidence of a general practice accepted as law, (c) general principles of law recognised by civilised nations, and (d) judicial decisions and teachings of publicists as subsidiary means.

Soft law (declarations, guidelines, resolutions) is not formally binding but often crystallises into custom or influences treaty interpretation.

- International law is horizontal (no central legislature or police); enforcement is decentralised and political as well as legal.
- For Uganda, the Constitution and the ratification process under Article 123 frame how international rules enter the domestic system.

2. DETAILED RULES AND APPLICATION

Treaties bind parties according to the principle *pacta sunt servanda*. Custom requires consistent State practice plus *opinio juris* (belief that the practice is legally obligatory).

General principles fill gaps (e.g. good faith, *res judicata*, estoppel). ICJ decisions bind only the parties to the case but carry high persuasive weight.

Example: the prohibition on the use of force is both treaty (UN Charter Art. 2(4)) and custom. The right of self-defence is recognised in both.

Key test: identify the source first — treaty text, custom (practice + *opinio juris*), general principle, or soft law — before arguing content.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda is an active participant in the East African Community, African Union and UN system. Treaty ratification follows constitutional procedure; dualist tendencies mean domestic legislation is often needed for full effect.

Exam trap: treating every UN General Assembly resolution as automatically binding customary law without evidence of practice and *opinio juris*.

Method: (1) name the source category, (2) cite the instrument or practice, (3) show how it applies to the facts, (4) note any Uganda reception issue.

Carry source analysis through every later module — jurisdiction, responsibility and use of force all rest on it.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. List the four main sources in Article 38(1) ICJ Statute.
2. What two elements make custom?
3. Distinguish hard law from soft law with one example.
4. Why is international law described as horizontal?
5. How does Article 123 of the Constitution relate to treaties?
6. What is the first analytical step when a rule is disputed?

Exam tip: Source first, content second; always check domestic reception.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.